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6. Independent Contractor Status.

Temporary Consultant is deemed an employee of Subcontractor only and will not be considered an agent or employee of Sierra Support Centre or Customer for any purpose. Subcontractors are and will be independent contractors. Subcontractor will be solely responsible for payment of Temporary Consultant's salary including withholding of income taxes and social security, workers' compensation, and disability benefits. Subcontractor will perform all payroll and record keeping functions required by law in connection with Temporary Consultant. Subcontractor will be solely responsible for payment of all compensation owed to Temporary Consultant, including all applicable federal, state and local employment taxes and will make deductions for all taxes and withholdings required by law. Subcontractor will be solely responsible for and will file on a timely basis, all tax returns and payments required to be filed with or made to any federal, state, or local tax authority with respect to Subcontractor's performance of services and receipt of fees under this Agreement. No part of Subcontractor's compensation will be subject to withholding of Sierra Support Centre or Customer or the payment of any social security, federal, state or any other employee payroll taxes. In no event will Temporary Consultant be eligible for or entitled to any benefits of Sierra Support Centre or Customer, including, but not limited to, vacation, sick leave, paid holidays, group insurance and retirement plan coverage or participation, and the like. In the event that any federal, state or local government agency, court or authority determines that the Temporary Consultant(s) provided by Subcontractor hereunder are employees of Sierra Support Centre for any purposes, Subcontractor will indemnify and hold Sierra Support Centre harmless from all liabilities, costs and expenses, including but not limited to attorneys' fees, associated with such determination.

7. Subcontractor's Temporary Consultants.

a. Reference Checks. Subcontractor will be responsible for performing reference checks for each Temporary Consultant provided by Subcontractor to Sierra Support Centre, Including prior work history, criminal history.

b. Subcontractor Employee. Subcontract agrees only to provide Temporary Consultants here under who are employees of Subcontractor and not independent contractors and/or employees of Third-Party Subcontractors unless specifically identified as such and agreed to by Sierra Support Centre on the applicable Work Order.

c. Removal of Temporary Employee. Should Sierra Support Centre, in its sole discretion, determine that Temporary Consultant assigned to this Agreement is unsatisfactory or that such employee does not meet the professional standards. Deemed appropriate by Sierra Support Centre, or should the Customer request the removal of any Temporary Consultant, the Subcontractor will promptly remove such Temporary Consultant from the assignment hereunder. If such a Temporary Consultant is removed within 2 weeks of his/her start date, Subcontractor agrees not to charge Sierra Support Centre for such services, but other expenses including Air travel, Hotel Accommodation and Rental shall be paid by Sierra Support Centre to the Subcontractor.